

25PR00462 Estate of Donald William Morgan

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-07-28

Motion: Petition for Final Distribution

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Tentative Ruling: Estate of Donald William Morgan

Case Number

25PR00462

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 07/28/2026 - 09:00

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

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Appearances required.

The following must be submitted:

Supplement to the Petition re: Assignment by Tabitha Morgan. The proposed distribution does not comply with the intestate distribution scheme in the Probate Code. When a decedent's estate does not pass by a testamentary instrument (by failure of

transfer, or omission, etc.), that property passes to the decedent's heirs as prescribed in Division 6, part 2 of the Probate Code (§§6401, et seq.). (Prob. Code, § 6400.) The proposed distribution implies assignment of at least a portion of the estate was made by Tabitha Morgan.

Any assignment must meet the requirements of Probate Code section 11604. Therefore, the proposed distribution that departs from the law of intestacy in this case, can only be ordered by this Court if an assignment is made that the court finds is not "grossly unreasonable."

Therefore, the supplement should explain the details of the assignment, including any writing reflecting the terms of the assignment, and a declaration by Tabitha Morgan stating why the assignment is necessary.

Proposed Order. A proposed order must be submitted with relief that matches that requested in the petition. (Local Rule 1724(b), subd.(d).) Order must list every beneficiary and detail the shares to each, and must expressly state limitations or conditions on distribution. (Prob. Code, § 11603.) IF whereabouts of a distributee are unknown, the Proposed Order must provide for alternate distributees, and detail the share to which they are entitled per PC § 11603(c). It is highly recommended petitioner use Local Form SC-6029. No such document was filed with the court.

If the documents curing these deficiencies are not processed by 8:00 a.m. on July 24, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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